

State of Minnesota in Court of Appeals

Appellant's Informal Reply Brief 128.01

Appellate Case Number #A24-1084

December 9th, 2024

Sean Bruce Henry, "Pro Se" Appellant, (A Self-Represented Party Litigant)
Plaintiff Employee - Terminated 03/31/2022

Civil Complaint & Summons Served 03/31/2023 /Lawsuit Filed 04/26/2023

1230 8th Ave So

South Saint Paul, MN 55075

(651) 592-8421

sean.henry007@gmail.com

Saint Paul, MN 55102

Servion, Inc., Respondent,

Defendant Employer

500 Main Street

New Brighton, MN 55112

(651) 631-3111

www.myservion.com

(612) 339-6321 www.felhaber.com

Respondent Attorney Ms. Penelope J. Phillips (#200876) pPhillips@felhaber.com

Respondent Attorney Ms. Lauren M. Weber (#0396567) lweber@felhaber.com

Second Judicial District

Ramsey County Civil Court

Case No. #62-CV-23-2227

15 W. Kellogg Blvd, Ste 1700

(651) 266-8237

www.mncourts.gov

The Honorable Judge Sara R. Grewing

Felhaber Larson, Attorneys at Law

Respondent Defense Attorneys

220 South 6th Street, Ste 2200

Respondent Attorney Mr. Brandon J. Wheeler (#0396336) bwheeler@felhaber.com

I was not going to initially reply, as I believed what I presented in my initial brief was persuasive enough to reveal how the Respondent has been avoiding, concealing, evading, and downright illegally withholding direct relevant case evidence in my multiple discrimination and retaliation events over the course of a year or more time period during the height covid in 2021-2022. Also the documents they have been withholding and are still withholding have been identified since as early as the original complaint. So their argument is i didn't present enough evidence for prima facie, but i disagree because the record shows plenty of opposition to their summary judgement and what I did submit on 03/29/2024 has several laws print offs making my argument especially on the FMLA claims.

The Respondent's argument is that my claims are potentially barred, however I argue that since my manager was in a position of authority and placed me on the several adverse employment actions, where she was in full control of when and how I would ever be released from them, which I was wrongfully terminated at a moment in my life where I needed help and relied my superiors for guidance through those difficult times. So I was on that commute only adverse plan until 03/30/2022 when i was wrongfully terminated and I had no ability to mitigate the time or so I believe the legal term is called equitable tolling and should last until the adverse action was removed?

FELHABER LARSON

ATTORNEYS AT LAW

Lauren M. Weber
612.373.8500
Email: L.Weber@Felhaber.com

May 14, 2024

VIA EMAIL AND U.S. MAIL

Mr. Sean Henry
1230 8th Ave. S.
South St. Paul, MN 55075
sean.henry007@gmail.com

RE: Sean Bruce Henry v. Servion, Inc.
Court File No. 62-CV-23-2227
Our File No. 28942.20

Mr. Henry:

I write on behalf of Defendant Servion, Inc. ("Servion") in connection with the above-referenced matter. Enclosed herewith and served upon you, please find the Joint Statement of the Case filed with the Court today.

If you have obtained legal counsel, please forward this communication to your counsel and have them contact me. Thank you.

Sincerely,

/s/ Lauren M. Weber

Lauren M. Weber

Encl.

220 South 6th Street
Suite 2200
Minneapolis, MN 55402-4504

Phone: 612.339.6321
Fax: 612.339.0535

felhaber.com

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STATE OF MINNESOTA

DISTRICT COURT

COUNTY OF RAMSEY

SECOND JUDICIAL DISTRICT

CASE TYPE: Employment

Sean Bruce Henry,

Court File No. 62-CV-23-2227

The Honorable Sara R. Grewing

Plaintiff,

v.

 JOINT STATEMENT OF THE CASE

Servion, Inc.,

Defendant.

Pursuant to the Court's Amended Scheduling Order and Minnesota General Rules of Practice 112.01 and 112.02, Plaintiff Sean Bruce Henry ("Plaintiff") and Defendant Servion, Inc. ("Servion") submit the following Joint Statement of the Case.

1. All parties have been served with process. The case is at issue.

On May 10, 2024, counsel for Servion sent Plaintiff the proposed Joint Statement of the Case and requested that he provide information for Paragraph 5 (Plaintiff's Concise Statement of the Case) and Paragraph 7 (the name and addresses of witnesses known to Plaintiff that Plaintiff may call at trial). See Exhibit A attached hereto. Counsel for Servion also asked that he identify his position if he disagreed with Paragraphs 1-4 and 8-10 of the proposed Joint Statement of the Case. *Id.* On May 13, 2024, Plaintiff responded via email attaching "Plaintiff's Responses to Joint Statement of the Case." See Exhibit B attached hereto. Servion objects to "Plaintiff's Responses to Joint Statement of the Case" as outside the scope of Minnesota General Rules of Practice 112.02.

2. Estimated trial time: 2-3 days.
3. This case will be tried to the bench before the Honorable Sara R. Grewing.
4. The parties see no practical reason why this case should not be tried as a standard case at this time.
5. Plaintiff's Concise Statement of the Case Indicating the Facts that Plaintiff Intends to Prove and the Legal Basis for All Claims:

See Exhibit B.

6. Defendant's Concise Statement of the Case Indicating the Facts that Defendant Intends to Prove and the Legal Basis for All Defenses:

Plaintiff was employed by Servion as an Underwriter. During his employment, Plaintiff was originally permitted to work remotely. When Plaintiff's performance began to suffer working remotely, Servion exercised its right to revoke Plaintiff's work from home privileges in March 2021, requiring him to work full time in the office. By November 2021, Servion agreed to permit Plaintiff to begin working a hybrid remote work schedule (a certain amount of days remote and a certain amount of days in the office). Shortly thereafter, Plaintiff began to consistently violate Servion's attendance policies, demonstrating a pattern of chronic tardiness. As a result, in February 2022, Servion again exercised its right to revoke Plaintiff's work from home privileges, requiring him to work full time in the office. Servion also placed Plaintiff on a formal Attendance Improvement Plan, which outlined his tardies and informed him that further violations of Servion's attendance policies could result in his termination.

After receiving the Attendance Improvement Plan, Plaintiff made a complaint to Servion's Human Resources department that he believed the revocation of his work from home privileges was based on his sex (male) and age. Servion investigated Plaintiff's claims and confirmed that he was the only Underwriter in the department that was more than 30-minutes late for work on a regular basis. Servion also met with Plaintiff to discuss his concerns. During this meeting, Plaintiff admitted that he did not believe he was being discriminated against, but that he believed his supervisor simply did not like him. Servion was not able to substantiate Plaintiff's allegations of sex and age discrimination and informed Plaintiff of its conclusion. Plaintiff did not raise any further complaints after Servion concluded its investigation.

In March 2022, Plaintiff notified Servion that his father passed away and that he was under a lot of stress sorting through his family's financial affairs and his father's estate—including the financial affairs of his elderly mother and adult brother who he stated was autistic. Plaintiff took five days of paid bereavement leave as provided by Servion. At no time after his father's death did Plaintiff request to take additional time off to attend to his family affairs, despite Servion informing him that he was able to do so.

After being placed on the Attendance Improvement Plan in February 2022, Plaintiff continued to violate Servion's attendance policies and the Attendance Improvement Plan in March 2022, including starting his workday more than 30-minutes late on several occasions, falling asleep at his desk during the workday, and falling asleep in his car for multiple hours during the workday. Plaintiff's work performance also declined sharply. He was not meeting Servion's reasonable expectations regarding productivity and was not communicating appropriately and timely with clients. Accordingly, on March 31, 2022, Servion terminated Plaintiff's employment.

Plaintiff has asserted the following claims against Servion in this action: (1) sex and age discrimination in violation of the Minnesota Human Rights Act ("MHRA") based on

the March 2021 revocation of his work from home privileges; (2) sex and age discrimination in violation of the MHRA based on the February 2022 revocation of his work from home privileges and the Attendance Improvement Plan; (3) familial status discrimination in violation of the MHRA; and (4) retaliation in violation of the Minnesota Whistleblower Act (“MWA”) in connection with making his complaint of discrimination and reporting the change in his family status after the death of his father.

Servion will prove that it had legitimate, non-discriminatory reasons for its employment decisions, namely, Plaintiff’s repeated and consistent violation of Servion’s attendance policies, violation of the Attendance Improvement Plan, and poor performance. Plaintiff cannot establish his claims against Servion because (1) he cannot establish that revocation of his work from home privileges constituted an adverse employment action that affected a term, condition, or privilege of his employment; (2) he cannot put forth evidence that Servion made any employment decisions based on his sex, age, familial status, or alleged reports; (3) he cannot demonstrate “familial status” as defined by the MHRA; and (3) he cannot put forth evidence that Servion’s legitimate, non-discriminatory reasons for the revocation of his work from home privileges and his termination were pretextual for discrimination or retaliation.

7. List the names and addresses of witnesses known to either party that either party may call. Indicate the party who expects to call the witness and whether the party intends to qualify that witness as an expert.

The parties may call any or all of the following witnesses:¹

Party	Name/Address of Witness	Expert Witness?
Defendant Servion	Mr. Jesse Kook 500 Main Street New Brighton, MN 55112 (to be contacted through Defendant’s counsel only)	No
Defendant Servion	Ms. Kim Martin 500 Main Street New Brighton, MN 55112 (to be contacted through Defendant’s counsel only)	No
Defendant Servion	Mr. Joseph Ireland 500 Main Street New Brighton, MN 55112 (to be contacted through Defendant’s counsel only)	No

¹ Servion reserves the right to remove, modify, or supplement this list at any time before obligated to provide a witness list. Servion further reserves the right to call additional witnesses not identified in this list for rebuttal purposes and to lay foundation, if necessary, and to call any witnesses identified by Plaintiff.

For Plaintiff's disclosure of witnesses, see Exhibit B.

The parties will exchange and file their final witness lists as required by Minn. R. Civ. P. 26.01(c) or as otherwise required by the Court.

8. Identify any party or witness who will require interpreter services, and describe the services (specifying language, and, if known, particular dialect) needed.

None.

9. In claims involving personal injury, attach a statement by each claimant, whether by complaint or counterclaim, setting forth a detailed description of claimed injuries and an itemized list of special damages as required by the rule. Indicate whether parties will exchange medical reports.

Not applicable.

10. In claims involving vehicle accidents, attach a statement describing the vehicles with information as to ownership and the name of insurance carriers, if any.

Not applicable.

 Dated: May 14, 2024

 **PLAINTIFF SEAN BRUCE HENRY²**

Sean Bruce Henry

Dated: May 14, 2024

FELHABER LARSON

By  /s/ Lauren M. Weber
Penelope J. Phillips, #200876
Lauren M. Weber #0325567
220 South Sixth Street, Suite 2200
Minneapolis, Minnesota 55402
Telephone: (612) 339-6321
pPhillips@felhaber.com
lweber@felhaber.com

ATTORNEYS FOR SERVION, INC.


² On May 10, 2024, Servion asked Plaintiff for permission to affix his e-signature to the Joint Statement of the Case, but Plaintiff did not respond. *See* Exs. A-B. Servion therefore submits the following Joint Statement of the Case without Plaintiff's signature.